

in a separate unit altogether. He denied that any windows were replaced in the tenant's kitchen and stated that the same windows are there to this day. That testimony was corroborated by his witness, [REDACTED].

25. Regarding the bathroom, the landlord stated that the other 2 residents at the complex had their own private bathrooms in their rooms, while the tenant was required to use a bathroom that was in the shared common area in the stairwell. He stated that as this bathroom was in a shared area, it was deemed to be a shared bathroom, but he did acknowledge that he had informed the tenant it would not be used by those other residents too often as they had their own bathrooms. He denied, though, that he had ever informed her that it was for her exclusive use.

Loss of Productivity

26. The landlord again stated that no renovations were taking place in any part of the complex that the tenant had access to, and he also claimed there was very little noise generated as a result of these renovations. He stated that he had carried out the work by himself, and that it amounted to little more than plastering and painting. Additionally, the work was done in the middle of the day during regular business hours.
27. The landlord also claimed that on those occasions where the tenant had asked that he keep the noise down, as she may have had a special meeting, for example, he would immediately stop his work for several hours. That testimony was also corroborated by [REDACTED]. The landlord claimed that there was no occasion where he had not complied with this sort of request from the tenant.
28. With respect to the tenant's high blood pressure, the landlord argued that the tenant had presented no evidence at the hearing to establish that there was any connection between the renovations, or any other action of his, and her medical condition.

Analysis

29. Regarding the alleged loss of 30% of the common areas, I was not persuaded that the tenant had made her case at the hearing. The landlord denied that he had been carrying out any renovations in the tenant's unit, and that testimony was corroborated by the landlord's witness, [REDACTED]. There was also no evidence presented by the tenant, e.g., a rental agreement or a text-message exchange, to establish that she had been promised the exclusive right to use the bathroom in the stairwell.
30. I was also not convinced that the tenant had established that the landlord is responsible for compensating her for half of her wages during the period from March to May 2021. No concrete evidence was submitted at the hearing to establish that the tenant had been working 50% longer on her work than she otherwise would have, and it was the corroborated testimony of the landlord that